

August 21, 2026

CALIFORNIA DEPARTMENT OF SOCIAL SERVICES

EXECUTIVE SUMMARY

ALL COUNTY LETTER NO. 26-58

The purpose of this All County Letter is to provide County Welfare Departments (CWDs) with guidance on the extension of California's Elderly Simplified Application Project (ESAP) Demonstration Project and significant changes to the project as a result of modifications to the Terms and Conditions of the Project by the Food and Nutrition Administration.



JENNIFER TROIA
DIRECTOR

CALIFORNIA HEALTH & HUMAN SERVICES AGENCY
DEPARTMENT OF SOCIAL SERVICES
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GAVIN NEWSOM
GOVERNOR

August 21, 2026

ALL COUNTY LETTER NO. 26-58

TO: ALL COUNTY WELFARE DIRECTORS
ALL CALFRESH PROGRAM SPECIALISTS
ALL CONSORTIA PROJECT MANAGERS
ALL QUALITY CONTROL PROGRAM COORDINATORS
ALL TRIBES WITH A TITLE IV-E AGREEMENT WITH CDSS

SUBJECT: ELDERLY SIMPLIFIED APPLICATION PROJECT EXTENSION
APPROVAL AND MODIFICATIONS TO REMOVE INDIVIDUALS
AGED 60 THROUGH 64

REFERENCE: [HOUSE OF REPRESENTATIVES 1 \(HR 1\) \(PUBLIC LAW 119-21\);](#)
[FOOD AND NUTRITION ACT OF 2008 SECTIONS 3\(f\), 6\(o\),](#)
[11\(e\)\(3\), AND 17\(B\); 7 CODE OF FEDERAL REGULATIONS](#)
[\(CFR\) 273.2\(e\)-\(f\); 7 CFR 273.10\(f\)\(1\)-\(f\)\(4\); 7 CFR 273.14\(b\)\(3\); 7](#)
[CFR 273.24\(k\); ALL COUNTY LETTER \(ACL\) NO. 17-34; ACL NO.](#)
[17-53; ACL NO. 17-53E; ACL NO. 20-145, ACL NO. 22-15; ACL](#)
[NO. 23-85; ACL NO. 26-29; UNITED STATES DEPARTMENT OF](#)
[AGRICULTURE \(USDA\) FOOD AND NUTRITION SERVICE](#)
[SUPPLEMENTAL NUTRITION ASSISTANCE PROGRAM \(SNAP\)](#)
[– QUESTION AND ANSWER #1 FOR THE PROGRAM PURPOSE](#)
[AND WORK REQUIREMENT PROVISIONS OF THE FRA OF](#)
[2023 FINAL RULE](#)

The purpose of this All County Letter (ACL) is to provide County Welfare Departments (CWDs) with guidance regarding the extension of California's Elderly Simplified Application Project (ESAP) Demonstration Project and significant changes to the Project as a result of modifications to the Terms and Conditions of the Project by the United States Department of Agriculture (USDA), Food and Nutrition Administration (FNA), formerly the Food and Nutrition Service (FNS). These required changes were communicated by FNA on June 11, 2026 via memorandum and are required for continued operation of the ESAP.

The California Department of Social Services (CDSS) has been authorized by the FNA to continue implementing the ESAP for the period beginning October 1, 2026, and ending September 30, 2031. **However, effective March 1, 2027, the age requirement for ESAP eligibility has increased from 60 to 65.**

California's ESAP is approved with four existing waivers which, beginning March 1, 2027, apply only to CalFresh households where all members are age 65 or older and/or have a disability and the household has no earned income. Individuals ages 60 through 64 who do not have a disability will no longer be eligible to participate in ESAP. There have been no changes in eligibility for people with a disability.

The implementation date for the new age requirement reflects the time necessary to complete required automation changes in the California Statewide Automated Welfare System (CalSAWS) and provide training to county staff. Counties must not implement the modified ESAP through manual processes or system workarounds.

BACKGROUND

On November 13, 2020, CDSS received authorization from FNA to continue implementing the ESAP for the period beginning October 1, 2021, and ending September 30, 2026. At that time, California's ESAP approval included four waivers which applied only to CalFresh households wherein all members were age 60 or older and/or have a disability and the household had no earned income.

On July 4, 2025, President Trump signed House of Representatives 1 (HR 1) ([Public Law 119-21](#)) into law. HR 1 changed the definition of an Able-Bodied Adult Without Dependents (ABAWD) to include individuals aged 18 through 64, unless exempt. Prior to HR 1, the definition of an ABAWD included individuals aged 18 through 54.

Per the [USDA FNA SNAP Provisions of the One Big Beautiful Bill Act of 2025 ABAWD Exceptions Implementation Memorandum](#) released October 3, 2025, HR 1 does not change general SNAP work requirements, also known as work registration. Individuals aged 60 or older remain exempt from work registration. However, due to amendments at [7 USC 2015\(o\)\(3\)](#) that raise the ABAWD age threshold to 65, individuals aged 60 through 64 who are exempt from work registration solely due to age, are still subject to the ABAWD time limit, unless they qualify for another work registration exemption or an ABAWD time limit exemption. Households participating in the ESAP are not excluded from this new criteria.

On June 11, 2026, the FNA notified CDSS via memorandum that it was modifying all ESAP demonstration projects nationwide to exclude participants aged 60 through 64 who do not have a disability, citing alignment with the new ABAWD time limit and corresponding work and community engagement rules under HR 1. State agencies were given a deadline to implement this change no later than 60 days after publication of the memorandum, making California's deadline August 10, 2026. The FNA also

requested that states provide information regarding the feasibility of meeting this deadline, including eligibility system updates.

To ensure accurate and consistent implementation of these modified requirements, CDSS submitted a formal notice to FNA informing California's intent to implement the modified terms upon completion of CalSAWS automation, effective March 1, 2027.

On June 22, 2026, the FNA approved CDSS' delayed implementation of the modified Terms and Conditions effective March 1, 2027. California is approved to operate the ESAP effective October 1, 2026, through September 30, 2031, with the new age requirements effective beginning March 1, 2027.

OVERVIEW OF CALFRESH ELDERLY SIMPLIFIED APPLICATION PROJECT WAIVERS

The ESAP was approved in accordance with the requirements to operate a demonstration project under [section 17\(b\) of the Food and Nutrition Act of 2008](#) (the Act). The four requirements waived as part of California's ESAP are described below:

- The recertification interview requirement ([7 CFR 273.14\(b\)\(3\)](#));
- Verification requirements for information that is not questionable; data matching used to reduce client-provided verifications ([7 CFR 273.2\(f\)](#), [Section 11\(e\)\(3\) of the Act](#));
- The requirement to certify elderly/disabled households for 24 months such that households may be certified for 36 months, including for ESAP cases processed by the Social Security Administration (SSA) ([7 CFR 273.10\(f\)\(1\)](#), [Section 3\(f\) of the Act](#), [7 CFR 273.2\(k\)\(1\)\(iii\)\(B\)\(1\)](#)); and
- The requirement to contact the household at least once every 12 months thereby eliminating the need to send and collect a SAR 7 Eligibility Status Report (SAR 7) ([7 CFR 273.10\(f\)\(1\)](#), [7 CFR 273.12\(a\)\(5\)\(iii\)\(B\)](#), [Section 3\(f\) of the Act](#)).

These waivers currently apply to CalFresh households wherein all members are age 60 or older and/or have a disability and the household has no earned income. Beginning March 1, 2027, these waivers apply only to CalFresh households where all members are age 65 or older and/or have a disability and the household has no earned income.

IMPLEMENTATION INTRUCTIONS

ESAP CERTIFICATION AT INITIAL APPLICATION

ESAP Eligible Households: Currently, CalFresh applicants and recipient households are eligible for the ESAP if all household members are aged 60 or older and/or have a disability and the household has no earned income. If the household includes excluded or ineligible members that are also all aged 60 and older and/or have a disability, the

household is eligible for the ESAP. Effective March 1, 2027, individuals aged 60 through 64 who do not have a disability no longer qualify for ESAP.

Application Forms for ESAP households: CDSS released the paper CalFresh Elderly Simplified Application (CF 485) via [ACL No. 23-85](#) issued on October 10, 2023. The CWD is encouraged to utilize the CF 485 for ESAP initial applications, as it includes only those questions that are federally required and relevant to ESAP eligible households. This is intended to improve program access, decrease churn, and decrease administrative burden on the CWD. The CF 485 has been updated to reflect the new age requirements and will be available for use beginning March 1, 2027.

While the CF 485 is designed specifically for use by ESAP eligible households, CWDs may also use any CalFresh application, including the Application for CalFresh Benefits (CF 285) as an initial application and the Recertification for CalFresh Benefits (CF 37) as the recertification application, for ESAP households.

Expedited Service (ES): Per existing policy, CWDs must screen all applications, including those received from ESAP households, for ES entitlement and if eligible, process and issue benefits within three days. Under the ESAP and to the greatest extent possible, CWDs will use existing electronic data matches to complete verifications pending due to ES entitlement.

Interviews: [7 CFR 273.2\(e\)](#) requires CWDs to interview applicant households to determine eligibility at initial certification and recertification. Under California's ESAP approval, part of this rule is waived to permit CWDs to forgo the recertification interview for ESAP households, unless the case is set to be denied. CWDs must continue to conduct an initial certification interview for all ESAP households.

During the initial certification interview or the recertification interview when ESAP eligibility is first established, CWDs must clearly inform the household that an interview will not be required at the household's next recertification unless (1) the household requests an interview; (2) the CWD is going to deny the household's recertification application (e.g. a household's circumstances have changed and they appear to be ineligible for CalFresh); or (3) the information supplied by the household or authorized representative is questionable, incomplete or contradictory. The CWD must also inform the household of other reporting requirements, including requirements specific to ESAP households such as not completing a SAR 7 but continuing to be responsible for reporting gross monthly income received over the Income Reporting Threshold during the certification period.

Verifications: To the greatest extent possible, electronic matches will be used to verify identity, income, residency and social security numbers. Under California's ESAP approval, two rules related to verifications are waived:

- [Section 11\(e\)\(3\) of the Act](#) requires CWDs to verify non-excludable income and household size (if questionable). FNA is waiving this section so that ESAP households are only required to submit verification of income if it is questionable.
- [7 CFR 273.2\(f\)](#) requires CWDs to verify gross nonexempt income, non-citizen eligibility, utility expenses, medical expenses, social security numbers, residency, identity, and child support payments. FNA is waiving this provision so that ESAP households do not have to provide such verifications unless questionable. Electronic matches will be used to the greatest extent possible for verification.

If applicable, CWDs are required to use standard methods to verify excess medical expenses that exceed \$35 a month, and questionable information. If a medical expense can be verified via electronic sources (such as Medicare premiums), the household does not need to submit verification of that expense. Otherwise, the household must submit verification in order to claim the expense.

Certification Periods: The CWDs will assign ESAP households to a 36-month certification period. [7 CFR 273.10\(f\)\(1\)](#) allows certification periods to extend up to 24 months for Elderly/Disabled (E/D) households. Section 3(f) of the Act defines a certification period. Under California's ESAP approval, both rules have been waived and ESAP household certification periods have been extended to 36 months.

Periodic Reporting Requirements: All ESAP households will be on simplified reporting; however, ESAP participants are not required to submit periodic reports (i.e., SAR 7s). Households will report when the household monthly gross income exceeds 130% of the federal poverty guidelines (the Income Reporting Threshold for ESAP households); and when a household member wins substantial lottery or gambling winnings as defined by [7 CFR 273.11\(r\)](#) in accordance with [7 CFR 273.12\(a\)\(2\)](#).

MID-PERIOD CONVERSION TO NON-ESAP

Conversion from ESAP to Non-ESAP: During the 36-month certification period, if an ESAP household becomes ineligible for the ESAP, but remains eligible for CalFresh (for example, due to a household composition change or employment), the CWD must convert the household from ESAP to a non-ESAP household in accordance with current reporting rules. To maintain eligibility, households converted from ESAP to non-ESAP must comply with all reporting requirements, including submission of a SAR 7 at 12 and 24 months as applicable, for the remainder of the 36-month certification period.

Households that become ineligible for ESAP must maintain their 36-month certification period. The CWD cannot shorten a household's certification period once assigned. At the end of the 36-month certification period, the CWD must determine not only the household's continuing CalFresh eligibility but also whether the household continues to be ineligible for ESAP and, if so, assign the household a certification period based on household type. The length of the new certification period will be 12 or 24 months, depending on the reason why the household is no longer eligible for ESAP. If the

household is determined to once again be ESAP eligible, the household must again be assigned a 36-month certification period.

The CWD must notify an ESAP household when it is converted from ESAP to a regular CalFresh household. The CalFresh Notice of Status Change for Households with only Elderly and/or Disabled Members (CF 377.2D) informs the household about non-ESAP reporting responsibilities (e.g. interview required at recertification and periodic reporting).

RECERTIFICATION

Interviews: In accordance with [7 CFR 273.14\(b\)\(2\)](#), ESAP households must submit an application for recertification to continue receiving benefits beyond the approved certification period. If, at recertification, it appears that an ESAP household will no longer be eligible for CalFresh based on the information provided on the application for recertification or other information available to the CWD, the CWD must attempt to schedule an interview. A recertification application for an ESAP household must not be denied without an attempt to schedule an interview.

NEW ESAP REQUIREMENTS EFFECTIVE MARCH 1, 2027

The modified Terms and Conditions of the ESAP specify that:

- State agencies must exclude participants aged 60 through 64 who do not have a disability.
- Current ESAP households that include participants aged 60 to 64 who do not have a disability are no longer eligible for the demonstration project.
- State agencies must convert these households to non-ESAP during the certification period under the State agency's approved waiver terms and conditions.
- State agencies must screen individuals formerly eligible for ESAP for an exemption from the ABAWD time limit in accordance with [7 CFR 273.24\(k\)](#) to determine if they are exempt or subject to the time limit.
- All other terms and conditions of the State agency's ESAP approval remain in effect.

NEW APPLICANTS

Effective March 1, 2027, individuals aged 60 through 64 who do not have a disability no longer qualify for ESAP. All other ESAP eligibility criteria continue to apply.

ONGOING ESAP HOUSEHOLDS

Effective March 1, 2027, ongoing ESAP households that include individuals aged 60 through 64 who do not have a disability will no longer be eligible for ESAP, meaning this

change is effective for all ongoing ESAP households with recertifications due in March 2027 and thereafter.

As a reminder, households converted from ESAP to non-ESAP must comply with all reporting requirements, including submission of a SAR 7 at 12 and 24 months as applicable, for the remainder of the 36-month certification period. The conversion process for these households mirrors the steps described above under the “Mid-Period Conversion to Non-ESAP” section. For SAR 7 reporting, the earliest possible submission of a periodic report for an affected household will be in April 2027.

Households that become ineligible for ESAP must maintain their 36-month certification period. If a CalFresh household that was previously converted from ESAP to non-ESAP as a result of the modified waiver appears ESAP eligible based on the information provided on the application for recertification (e.g. all household members are now aged 65 or older), the CWD must conduct a recertification interview to establish ESAP eligibility going forward. A recertification interview cannot be waived until after ESAP eligibility has been established.

APPLYING THE CALFRESH TIME LIMIT TO FORMER ESAP ELIGIBLE INDIVIDUALS

Once an individual age 60 through 64 who does not have a disability has been converted from ESAP to non-ESAP, that person may be considered an ABAWD. That determination, including whether the person is exempt from or subject to the time limit, must only happen at the individual’s next recertification when an exemption screening must be completed and, if subject to the time limit, when the individual must be informed of the CalFresh work rules. The exemption screening must reflect the modified exemption criteria under HR 1.

Counties are also reminded that an exemption from the time limit granted at initial application, mid-period or recertification cannot be removed until the ABAWD has been rescreened for an exemption at their next recertification ([United States Department of Agriculture \(USDA\) Food and Nutrition Service Supplemental Nutrition Assistance Program \(SNAP\) – Question and Answer #1 for the Program Purpose and Work Requirement Provisions of the FRA of 2023 Final Rule issued on December 20, 2024](#)).

At recertification, the CWD must follow the required screening order for former ESAP participants age 60 through 64 and who do not have a disability:

1. Screen for work registration exemptions.
 - If the individual qualifies for a work registration exemption other than the age exemption, they are not considered an ABAWD and do not require further ABAWD screening.
2. If no work registration exemption applies, screen for an exemption from the ABAWD time limit.

- Individuals who meet the criteria for an exemption are not subject to the time limit.
- Individuals who do not meet the criteria for an exemption are subject to the time limit.

As a reminder, per [ACL No. 26-29](#) issued on April 15, 2026, an individual cannot be subject to the time limit until they have been screened for an exemption and informed of the ABAWD work rules. Following the screening process, counties must provide an oral explanation of the work rules along with the CF 886.

NOTICING REQUIREMENTS

Three ESAP specific notices (CF 377.2B, CF 377.2C, and CF 377.2D) were released via [ACL No. 17-53](#) issued on June 14, 2017, which provides instructions on the use of the three forms, and revised via [ACL No. 17-53E](#) issued on May 18, 2018.

The CF 377.2B and CF 377.2C serve as alternative notices of expiration of certification. Households nearing the end of the 36-month certification period must be sent either the CF 377.2B or the CF 377.2C, but not both. If the household is still participating in the ESAP, the CWD must use the CF 377.2B. If the household was converted from ESAP to non-ESAP during the 36-month certification period, the CWD must use the CF 377.2C.

For impacted households being converted from ESAP to non-ESAP mid-period due to the FNA modification of ESAP terms, CDSS has created a new one-time notice, the *CalFresh Notice of Change for Households with Only Elderly and/or Disabled Members* (CF 891). The CF 891 will inform households that they will now be subject to regular CalFresh reporting requirements, including a recertification interview. This notice will be sent to all impacted households following the batch conversion to non-ESAP in CalSAWS, prior to the policy effective date.

FORMS UPDATE

CDSS has updated the CF 485 CalFresh Elderly Simplified Application to reflect the updated ESAP eligibility criteria. The updated CF 485 has been included as an attachment to this letter and will be available for use beginning March 1, 2027.

QUALITY CONTROL

The FNA has determined that the ESAP does not significantly modify the rules of determining a household's eligibility or benefit level. Therefore, ESAP household case review outcomes must be included in the state's error rate.

Reviewers will first make sure that all impacted households are correctly classified as ESAP households under the project rules. If the household is not correctly classified as

an ESAP household, eligibility and benefits will be reviewed following the regular SNAP standards. If the household is correctly classified as an ESAP household, eligibility and benefits will be reviewed following the rules of the ESAP. QC must apply verification standards and procedures specified in the FNS 310 Handbook. Without verification of all relevant circumstances, QC will be unable to complete a full QC review.

Cases selected for QC review may be included in the evaluation of the ESAP. Additional cases may be chosen if cases selected through the regular QC process are insufficient. A desk review of case information and verification of client information may be done via telephone if additional cases are needed.

REPORTING REQUIREMENTS AND EVALUATION

The FNA requires that the State submit an annual ESAP evaluation report. Reports are due four and a half months after the end of the federal fiscal year (FFY). The CalSAWS will provide CDSS with the necessary data through the existing CalSAWS Internal Data Request (CIDR) process to complete required ESAP evaluation reports. Additionally, CDSS will now submit a Sampling Plan with a narrative explanation of the process used to select the sample and conduct case reviews.

California ESAP Reporting Schedule

Reports	Date Range Covered	Report Due Date
First Report	October 1, 2026 - September 30, 2027	February 15, 2028
Second Report	October 1, 2027 - September 30, 2028	February 15, 2029
Third Report	October 1, 2028 - September 30, 2029	February 15, 2030
Fourth Report	October 1, 2029 - September 30, 2030	February 15, 2031
Request for Renewal	N/A	April 1, 3031
Fifth Report	October 1, 2030 - September 30, 2031	February 15, 2032

Please refer to the attached Project approval letter for additional information on the reporting requirements for the Sampling Plan and Annual Report.

COPIES AND TRANSLATIONS

Forms referenced in this letter are available on the [CDSS Forms/Brochures webpage](#). When CDSS completes translations of a form, they are posted on the [Translated Forms and Publications webpage](#). When made available by CDSS, forms translated into an individual's preferred language must be provided to the individual pursuant to [MPP Section 21-115.2](#). For questions on translated materials, please contact Translation Services Section at its@dss.ca.gov. If translations are not available, recipients who have elected to receive materials in languages other than English should be sent the English version of the form or notice along with the [GEN 1365-Notice of Language Services](#) and a local contact number. See [ACL No. 22-56](#).

Per [MPP Section 21-115](#), the CWD must ensure effective bilingual services are provided. This requirement may be met through utilization of paid interpreters, qualified bilingual employees, and qualified employees of other agencies or community resources. These services must be provided, free of charge, to the applicant/recipient. If CDSS does not provide translations of a form, it is the county's responsibility to read and interpret the form if an applicant or recipient requests it. See [ACL No. 22-56](#).

Additionally, the CWD must provide auxiliary aids and services such as notices and forms in alternate formats to persons with vision, hearing, or speech disabilities, where applicable. More information regarding provisions for services to applicants and recipients who have limited English proficiency or who have disabilities can be found in [MPP Section 21-115](#) and [ACL No. 19-45](#).

If you have any questions or need additional guidance regarding the information in this letter, contact the CalFresh Policy Bureau at CalFreshPolicy@dss.ca.gov.

Sincerely,

Original Document Signed By

ALEXIS FERNÁNDEZ GARCIA
Deputy Director
Family Engagement and Empowerment Division

Attachments



July 22, 2026

Becky Silva
Branch Chief
CalFresh Branch
Family Engagement and Empowerment Division
California Department of Social Services
744 P Street
Sacramento, CA 95814

Dear Branch Chief Silva,

This letter is in response to the March 10, 2026, request from California's Department of Social Services (the State) to renew the California Elderly Simplified Application Project (CA ESAP) demonstration project. Under the authority granted by section 17(b)(1)(A) of the Food and Nutrition Act of 2008, as amended (the Act), the Food and Nutrition Administration (FNA) is pleased to approve the State agency's request to continue its ESAP subject to the enclosed waivers effective October 1, 2026, through September 30, 2031.

FNA approves this request because it improves the efficiency and effectiveness of program administration and streamlines State agency processes for serving the elderly and disabled population. Under regular SNAP rules, the State agency may assign individuals who are elderly and/or disabled a certification period up to 24 months. The State agency is required to conduct a recertification interview and verify household circumstances through use of documentation provided by the household or a third-party contact. For applicants who are elderly or disabled, the SNAP application process may be confusing and difficult to navigate due to health and technology challenges. It is also administratively burdensome on the State to conduct recertification interviews for households with no earned income whose circumstances are typically stable.

This Project improves customer service by waiving the recertification interview, extending the certification period to 36 months with no periodic report required to maintain eligibility, and allowing for greater use of computer matching for verification.

The ESAP waiver only applies to households where all household members are 65 years or older and/or disabled with no earned income.

As of FY 2025, the CA ESAP served nearly 1.2 million households, or 36% of the State's total SNAP caseload. Further, the monthly retention rate among CA ESAP households was six percentage points higher than that of the overall CA SNAP caseload in July 2025. The growth in the caseload of households containing elderly and/or disabled individuals, as well as

reduced churn among ESAP households, highlights the importance of maintaining administrative flexibility for this vulnerable population.

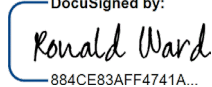
The streamlined ESAP renewal process leverages electronic verification sources to improve both efficiency and accuracy. Further, in FY 2025, CA ESAP generated approximately \$230.2 million in administrative savings (or 1.5 million staff hours) by waiving recertification interviews and periodic reports, allowing redeployment of State resources to more error-prone cases. This project addresses some of the most common barriers to SNAP enrollment faced by elderly individuals and results in more effective administration of the program.

FNA appreciates the State agency's dedication to supporting this population. The attached terms and conditions provide the evaluation requirements and include a reporting schedule. During the project period, FNA requires your agency to submit annual reports, the first of which will be due to FNA by February 15, 2028. FNA also requires your agency to submit a sampling plan, which will be due to FNA by February 15, 2027.

Please note that FNA has updated the quality control (QC) language, updated ESAP reporting requirements, and added a new sampling plan requirement in this approval. Please ensure your QC office and other appropriate staff are provided the updated language. See the *Quality Control* and *Evaluation* sections of this approval for more information.

We are requesting that your agency submit as quickly as possible, written acceptance of these terms and conditions signed by the appropriate State official in WIMS case #13842. Your acceptance letter must also include an attestation that the approval has been shared with relevant State policy and Quality Control officials. Please alert FNA when uploading the document by tagging the relevant Regional and National staff listed in the WIMS case team using the @ sign.

Sincerely,

DocuSigned by:

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Ronald Ward
Acting Associate Administrator
Supplemental Nutrition Assistance Program
Food and Nutrition Administration
U.S. Department of Agriculture

Enclosure

APPROVED WAIVERS
CALIFORNIA ELDERLY SIMPLIFIED APPLICATION PROJECT
(CA ESAP)

Elderly Simplified Application Project (the Project) waivers are approved in accordance with requirements to operate demonstration projects under section 17(b) of the Food and Nutrition Act of 2008, as amended (the Act). The waivers described below only apply to households where all members are 65 years or older and/or disabled with no earned income.¹ The waivers do not apply to any other Supplemental Nutrition Assistance Program (SNAP) participants in the State.

WAIVERS OF THE ACT

1. Section 3(f) of the Act defines “certification period” as the period for which households are eligible to receive SNAP benefits. The certification period shall not exceed 12 months, except that the certification period may be up to 24 months if all adult household members are elderly or disabled. A State agency shall have at least one contact with each certified household every 12 months.

The Food and Nutrition Administration (FNA) is waiving this section to allow the State agency to extend the certification period for 36 months and eliminate the requirement that the State agency contact ESAP households once every 12 months. The State agency will continue to make annual contact with ESAP households.

2. Section 6(c)(1)(D)(i) of the Act notes that the State agency may require households that report on a periodic basis to submit reports not less often than once every 6 months, but not more often than once each month.

FNA is waiving this section to allow the State agency to waive the periodic report requirements.

3. Section 11(e)(3) of the Act requires that the State agency verify all non-excludable income and household size.

FNA is waiving this section of the Act to allow the State agency to use data matches in lieu of asking the client for income verification. Households will verify this information when it is questionable. The State agency will use computer matches to the greatest extent possible.

¹ Until the State agency’s system changes go into effect in March 2027 to implement the terms of FNA’s June 11, 2026, modification letter, the CA ESAP population will be households where all members are 60 years or older and/or disabled with no earned income.

WAIVERS OF SNAP REGULATIONS

1. 7 CFR 273.2(f) requires the State agency to verify gross nonexempt income, immigration status, utility expenses, medical expenses, social security numbers, residency, identity, disability, and child support payments.

FNA is waiving this provision of the regulations so participating ESAP households do not have to provide such verifications unless questionable. Computer matches will be used to the greatest extent possible to verify gross nonexempt income, social security numbers, identity, child support paid, disability and medical expenses for households that pay a Medicare premium. ESAP households will self-attest shelter expenses. The State agency will verify residency through readily available documentary evidence, collateral contacts, or home visits. The State agency will continue to verify non-citizen status, medical expenses greater than \$35 per month for households that do not pay a Medicare premium, and questionable information.

2. 7 CFR 273.2(k)(1)(iii)(B)(1) requires the State to certify SNAP applications processed by the Social Security Administration (SSA) for up to twelve months.

FNA is waiving this provision of the regulations to allow the State to extend certification periods up to 36 months for SNAP applications processed by the SSA for Supplemental Security Income (SSI) recipients with no earned income that are eligible for ESAP.

3. 7 CFR 273.10(f)(1) allows the State agency to certify households in which all adult members are elderly or disabled for up to 24 months. The State agency must have at least one contact with each household every 12 months. The State agency may use any method it chooses for this contact.

FNA is waiving this provision of the regulations to allow the State agency to certify ESAP households for 36 months. The State agency will continue to make annual contact with ESAP households.

4. 7 CFR 273.12(a)(5)(iii)(B) requires households in which all adult members are elderly or have a disability, have no earned income and whose certification periods last between 13 and 24 months to file a periodic report once a year.

FNA is waiving this provision of the regulations to allow the State agency to eliminate the periodic report requirements for households in which all members are 65 years or older and/or disabled, have no earned income, and are certified or converted under ESAP.

5. 7 CFR 273.14(b)(3) requires that the State agency interview applicant households prior to recertification.

FNA is waiving this provision of the regulations to permit the State agency to forego recertification interviews with participating households unless the State agency plans to deny the application for recertification, there is outstanding information or questions, or the household requests an interview. The State agency will not deny an ESAP recertification application if it does not schedule an interview. Interviews are required at initial certification.

IMPLEMENTATION

Eligibility

Households that meet the following conditions are eligible for the State agency's ESAP demonstration project: all household members are 65 years or older and/or disabled and where no household member receives earned income.¹

Application and Screening

ESAP households may apply using the State agency's ESAP application or any other SNAP (CalFresh) application.

Expedited Service

The State agency will process initial ESAP applications that appear eligible for expedited service within 7 days, consistent with existing procedures. The State agency will assign 36-month certification periods to ESAP households, assuming all necessary information is provided to the State agency in accordance with 273.2(i)(4)(iii).

Certification Period

The State agency will certify ESAP households for 36 months.

Simplified Reporting

All ESAP households will be on simplified reporting; however, ESAP participants are not required to submit periodic reports. Households will report when the household monthly gross income exceeds 130% of the federal poverty guidelines; and when a household member wins substantial lottery or gambling winnings as defined by 7 CFR 273.11(r) in accordance with 7 CFR 273.12(a)(2).

The State agency will inform households converted from regular SNAP to ESAP of their reporting requirements through an ESAP-specific notice at the time of conversion. The State agency will inform ESAP households new to SNAP of their reporting requirements through both their ESAP-specific eligibility notice and in their initial interview.

Additionally, the State agency will make annual contact with ESAP households at the 12-month and 24-month marks reminding households of their reporting requirements and how to report changes.

Interview

The State agency will conduct initial interviews for all households applying for the ESAP demonstration project.

At recertification, the State agency must conduct an interview in the following situations:

1. If there are outstanding information or questions;
2. If the household requests an interview; or
3. If the State agency determines it will deny a recertification application. The State agency may not deny an ESAP recertification application if it does not schedule an interview.

Verification

The State agency will use data matches as verification for ESAP households to the greatest extent possible to verify gross nonexempt income, social security numbers, identity, child support paid, disability, and medical expenses for households that pay a Medicare premium. ESAP households will self-attest shelter expenses. The State agency will verify residency through readily available documentary evidence, collateral contacts, or home visits. The State agency will require verification from the household for non-citizen status, medical expenses exceeding \$35 a month for households that do not pay a Medicare premium, and any questionable information, which the State agency must verify in accordance with 7 CFR 273.2(f)(2).

Existing ESAP households covered by the California Standard Medical Deduction (SMD) demonstration project do not need to re-verify previously reported medical expenses exceeding \$35 at recertification. ESAP households that report new medical expenses that exceed the State agency's SMD must verify medical expenses in order to receive the medical expense deduction in excess of the SMD.

The State agency must continue to use the five FNA-required data sources: Electronic Disqualified Recipient System (eDRS), National Directory of New Hires (NDNH), Systematic Alien Verification for Entitlements Program (SAVE), Prisoner Update Processing System (PUPS)/SSA Prisoner Verification System, and the Internet-Electronic Death Registration/SSA Death Master File.

The State agency will use additional data matches to the greatest extent possible to verify information not already covered by the FNA-required data sources, such as the Income and Eligibility Verification System (IEVS).

If the State agency receives unclear information about a household's circumstances during the certification period and the State agency cannot readily determine its impact on the household's continued eligibility for SNAP, the State agency will follow regulations at 7 CFR 273.12(c)(3) and issue a written request for contact (RFC), as appropriate.

Conversion of Households

Converting Existing SNAP Households to ESAP

If the State agency becomes aware that a regular SNAP household is eligible for the ESAP at recertification, including households that were former ESAP participants removed from the demonstration project due to changes in circumstances, the State agency must add these households to the demonstration project and inform the households of their new status, reporting procedures, and responsibilities.

If the State discovers that a regular SNAP household is eligible for ESAP during their certification period due to a reported change, they will be converted at their next recertification. The State agency must continue to follow regulations at 7 CFR 273.12(c)(3) on unclear information.

Converting Ineligible ESAP Households to SNAP

When the State agency's system changes go into effect in March 2027 to implement the terms and conditions of FNA's June 11, 2026, modification letter, current ESAP households that include participants aged 60 to 64 who do not have a disability are no longer eligible for the demonstration project. The State agency will convert these households back to regular SNAP during the certification period following the below conversion process.

If during their certification period, an ESAP household becomes ineligible for ESAP, but remains eligible for SNAP, the State agency must remove the household from the ESAP demonstration project and convert the household to a regular SNAP household. Once the State agency converts an ESAP household into a regular SNAP household, the household is still entitled to the 36-month certification period. The State agency will assign these households to simplified reporting, and the households will be required to submit periodic reports at the frequency specified at 7 CFR 273.12(a)(5)(iii)(B).

At the time of conversion, the State agency must notify the household of the changes in their status and responsibilities. At the end of the 36-month certification period, the State agency must recertify households according to normal SNAP recertification requirements, including certification periods.

Outreach

The State agency will leverage existing partnerships with other State agencies and a broad statewide network of community-based organizations that work with elderly and disabled populations to communicate changes in CalFresh policy. Additionally, the State agency will proactively target existing CalFresh Outreach resources to the elderly population.

Training

The State agency will issue an All County Letter (ACL) describing policy changes and the operational details of implementation. Additionally, the State agency will provide counties with technical assistance support, such as an implementation guide, recommended best practices, webinars, and a technical assistance point of contact at the State agency.

**GENERAL WAIVER TERMS AND CONDITIONS
CALIFORNIA ELDERLY SIMPLIFIED APPLICATION PROJECT
(CA ESAP)**

GENERAL

- The Food and Nutrition Administration (FNA) authorizes California to operate the Elderly Simplified Application Demonstration Project (the Project) for a period of 5 years from the Project's start date of October 1, 2026. The Project will begin on October 1, 2026, and expire on September 30, 2031. The State agency will operate this project statewide.
- FNA reserves the right to withdraw its waiver approval and terminate the Project at any time if FNA determines that the Project is inconsistent with the Supplemental Nutrition Assistance Program (SNAP) goals to increase the efficiency of the Program and to improve the delivery of SNAP benefits to raise levels of nutrition among low-income individuals.
- If any Federal laws regarding this Project change during the approved period, the State agency will submit a modification request to FNA to ensure the Project's terms and conditions reflect current Federal law. FNA will review and approve the modification in accordance with section 17(b)(1)(D) of the Food and Nutrition Act of 2008, as amended.
- The State agency will ensure that all participants in the Project are qualified under the terms and conditions set forth in this approval.
- The State agency will provide FNA with regular reports, using the updated evaluation template available on FNA's Waiver Information Management System (WIMS).

REQUEST FOR AN EXTENSION

If the State agency would like to continue the Project beyond September 30, 2031, the State agency should send a request to FNA by April 1, 2031, six months before the Project expiration. The extension request letter should include a summary of progress to date, including the time since the last annual report, although FNA recognizes that data from the first part of the reporting period may only be preliminary.

QUALITY CONTROL (QC)

Authority

7 CFR 275.11(g) governs QC's review of demonstration projects and states, "households correctly classified for participation under the rules of an FNS-authorized demonstration

project which FNS determines to significantly modify the rules for determining households' eligibility or allotment level, shall be included in the QC selection and review process." FNA has determined the Project does not significantly modify the rules for determining households' eligibility or allotment level and therefore, the results of the reviews, in both the active and negative sample frames of households participating in the Project, must be included in the State agency's error rate.

Case Classifications

The State agency must code all active cases reviewed under the Project with a classification of "1" (included in the error rate calculation) in item #11 of the FNS-380-1, Quality Control Review Schedule. In addition, the State must code all negative cases reviewed the Project with a classification of "1" (included in the error rate calculation) in Section II, item #9 of the FNS-245, Supplemental Nutrition Assistance Program (SNAP) Negative Case Action Review Schedule.

Modified review procedures

The State agency must modify QC procedures for households participating in the Project. For all reviews, when verifying household circumstances, reviewers must independently verify all relevant circumstances for the period under review, following the rules for verification found in the FNS-310, SNAP's QC Review Handbook.

To determine if the State correctly classified the household for participation under the Project's rules, the QC reviewer must apply the household's verified circumstances against the eligibility rules of the Project. For active cases, if the State accurately included the household in the Project, the QC reviewer will move on to determine the accuracy of the allotment under review, again based on verified household circumstances and the Project's rules for determining benefit allotments. If the State did not correctly classify the household's participation under the Project, the household's eligibility and allotment under review will be evaluated against SNAP standards established in the Food and Nutrition Act, as amended, and Federal regulations, considering any FNA-approved waivers (other than those approved for the Project) or State agency options that deviate from specific provisions. For negative cases, the reviewer must follow the FNS-310's procedures for determining the validity of a negative action.

COST NEUTRALITY

To ensure that Federal costs do not increase because of implementing the approved waivers, the State agency guarantees that it will maintain cost neutrality for the duration of the Project.

EVALUATION

The State agency must provide FNA with regular reports, detailed in the evaluative components section below.

CA ESAP Reporting Schedule

Report Type	Reporting Period	Due Date
Fifth Annual Report from previous approval period	October 1, 2025-September 30, 2026	February 15, 2027
Sampling plan	N/A	February 15, 2027
First Annual Report	October 1, 2026-September 30, 2027	February 15, 2028
Second Annual Report	October 1, 2027-September 30, 2028	February 15, 2029
Third Annual Report	October 1, 2028-September 30, 2029	February 15, 2030
Fourth Annual Report	October 1, 2029-September 30, 2030	February 15, 2031
Renewal Request		April 1, 2031
Fifth Annual Report*	October 1, 2030-September 30, 2031	February 15, 2032

*If the State extends the Project, this report will be due during the new approval period. If the State discontinues the Project, this report will accompany a Project close-out report; the details of which are to be determined by FNA.

Evaluative Components

FNA is providing templates for the sampling plan and templates for all annual reports through the Waiver Information Management System (WIMS) library. Please refer to the [WIMS User Manual](#) for help locating the libraries and templates.

Sampling plan

The State agency must provide detailed information from a random sample of at least 200 ESAP households. The random sample of 200 ESAP cases can be sampled from 1 month or more months within the annual reporting period. The State should consider oversampling to account for any dropped cases to meet the minimum sample size. The State agency can choose to select the sample from two main sources: (1) your State's regular active QC sample and (2) your State's eligibility system (i.e., non-QC sampled cases). Your State may also sample from other sources such as an ESAP-specific database used to track ESAP households.

By February 15, 2027, the State will provide FNA with a narrative explanation (Sampling Plan) of the process used to select the sample and conduct case reviews. FNA recently created the *Demonstration Project Sampling Plan and Case Review Procedures Template* to guide State agencies through the steps of creating a sampling plan and the process for reviewing and reporting sampled case review results to FNA. Please review the template upon receipt and direct any questions to the FNA National staff listed in the WIMS case team using

the @ sign. Using the sampling plan template available in WIMS, the State will report on the following information:

1. State Agency and Demonstration Project Information

1.1. State, District, or Territory

1.2. Demonstration Project: (CAP, ESAP, SMD, or Other)

1.3. State agency contact: (Name, Title, Email, and Phone number)

1.4. Template submission date: (MM/DD/YYYY)

2. Sampling

2.1. State agency entity responsible for sampling: If multiple entities, clarify for which step(s) each entity is responsible.

2.2. Sample universe: The sample universe is the entire set of cases that could be included in the sample. It is the total population from which a sample is drawn.

2.3. Sample source: The sample source is the specific origin from which the sample will be drawn for the case review component of the demonstration project evaluation.

2.4. Sample month(s): For each sample source, indicate the month or months within the reporting period from which the State agency will sample cases to reach the minimum required sample size of active cases.

2.5. Sample frame construction: The sample frame is an unduplicated list of all the cases from the sample universe during the sample month(s).

2.6. Oversampling rate: The oversampling rate is the percentage of cases expected to be not subject to review or nonresponsive.

2.7. Random sampling method for selecting cases: A random sampling method must be used to select cases from the sampling frame.

3. Case Review Procedures

3.1. State agency entity responsible for conducting case reviews: If multiple entities, clarify for which step(s) each entity is responsible.

3.2. Process for providing sampled cases to case reviewers: Describe how the random sample of cases will be provided to case reviewers and how personally identifiable information and other sensitive information will be protected.

- 3.3. **Cases sampled from the State agency's active QC sample:** Complete this section if you will sample cases from the active QC sample.
- 3.4. **Case review process for cases sampled from a source other than the active QC sample:** Complete this section if you will sample cases from a source other than the active QC sample.
- 3.5. **Recalculating SNAP benefit amount process:** Describe the process for recalculating the benefit amounts for the sample cases based on the data elements captured in sections 3.3 and 3.4.
- 3.6. **Quality assurance process:** Describe the quality assurance process for checking the case-level data for accuracy and completeness.

4. Reporting

- 4.1. **State agency entity responsible for reporting:** If multiple entities, clarify for which step(s) each entity is responsible.
- 4.2. **Data compilation process:** Describe how the State agency will consolidate the case review results from section 3 into the appropriate FNA reporting template.
- 4.3. **Quality assurance process:** Describe the quality assurance process for checking the case-level data for accuracy, reasonableness, and completeness.
- 4.4. **Reporting:** Describe the process for finalizing and submitting the completed reporting template to FNA.

Annual reports

The State agency will provide an annual report for each year of the project. Annual reports are due 4.5 months after the end of each reporting period. The annual reports include three parts: Certification and Recertification, Active Review Findings, and Timeliness. **FNA recently updated the ESAP report template and created the *Procedures for the Elderly Simplified Application Project (ESAP) Data Collection Reporting* document for ease of use. Please review both documents before the first reporting period and direct any questions to the FNA National staff listed in the WIMS case team using the @ sign.** Using the report template available in WIMS, the State will report on the following information:

Certification and Recertification

The State agency must provide ESAP caseload data for the reporting period including the overall number of applications and recertifications approved and trends in your State's ESAP caseload.

- **Reporting Period Months (Month Year):** The Reporting Template will auto populate the 12-month reporting period based on the month and year entered in the [Reporting Period Starting Month] on the START HERE tab.
- **Approved Initial ESAP Applications:** Enter the total number of initial ESAP applications approved during the data reporting period.
- **Approved ESAP Recertifications:** Enter the total number of ESAP recertifications approved during the data reporting period.
- **Number of Active ESAP Households:** Enter the total number of active ESAP households in each month during the data reporting period.
- **Number of Active ESAP Households With Children:** Enter the total number of active ESAP households with children in each month during the data reporting period. Please enter “0” if your State does not allow children in ESAP households.

Active Review Findings

For each of the 200 or more sample cases, enter the following data points:

- **Household Reference Number:** Enter the case or reference number of the household sampled. Ensure the number used does not contain PII (e.g., SSN).
- **Sample Month:** Enter the month and year the case was sampled from.
 - **For QC cases:** Enter the sample month recorded in section 1, item 5 – Sample Month and Year on the case’s FNS-380-1.
 - **For eligibility system sampled cases:** Enter the month and year the case was sampled from.
- **Sample Source:** Select the source of the sample for the case. If the case was sampled from your active QC sample, select QC Sample. If the case was sampled from your eligibility system, select Eligibility System. If the case was sampled from another source, select Other.
- **Type of Case:** Based on the sample month, select the most recent action on the case.
 - **For QC cases:** Refer to section 3, item 21 – Type of Action on the case’s FNS-380-1. Select 1 - Certification if item 21 is 1. Select 2 - Recertification if item 21 is 2.

- **For eligibility system sampled cases:** Select 1 - Certification or 2 - Recertification as determined in step 3.1 in the Case Review: Eligibility System (or Other Non-QC Sampled) Case section.
- **SNAP Benefit Amount Issued:** Enter the SNAP benefit amount issued to the household in the sample month.
 - **For QC cases:** Enter the amount recorded in section 1, item 9 – SNAP Allotment Under Review on the case's FNS-380-1.
 - **For eligibility system sampled cases:** Enter the SNAP benefit amount the case received in the sample month as determined in step 3.1 in the Case Review: Eligibility System (or Other Non-QC Sampled) Case).
- **Review Finding:** Select the appropriate finding based on the review of the case.
 - **For QC cases:** Refer to section 1, item 8 – Findings on the case's FNS-380-1. The following list shows relevant codes and the associated [Review Finding] that should be selected.
 - **For eligibility system sampled cases:** Select the appropriate [Review Finding] as determined in step 7 in the Case Review: Eligibility System (or Other Non-QC Sampled) Case.
- **Variance Amount:** If the case received SNAP benefits it was not entitled to in the sample month, enter the variance amount regardless of the QC error tolerance threshold. For cases with a [Review Finding] of Correct, the field will be shaded dark gray to indicate you should not enter a value.
 - **For QC cases:** Enter the [Variance Amount] you determined in the Case Review: QC Cases section under step 3.2.
 - **For eligibility system sampled cases:** Enter the amount (as an absolute value) you calculated in step 6 in the Case Review: Eligibility System (or Other Non-QC Sampled) Case section.
- **Primary Case Error (QC Sampled Cases):** For cases sampled from your active QC sample that have a [Review Finding] of over- or underissuance or ineligible, enter the error element that QC determined was the most significant contributor to the case error. Refer to section 2, item 12 – Element, number 1 on the case's FNS 380-1. Use the three-digit element code as entered on the case's FNS 380-1. For cases with a [Review Finding] of Correct, the fields will be shaded dark gray; you should not indicate any case errors.

- **Primary Case Error (Non-QC Sampled Cases):** For cases sampled from a non-QC source that have a [Review Finding] of over- or underissuance or ineligible, select from the drop-down the error element you determined to be the most significant contributor to the case error in the Case Review: Eligibility System (or Other Non-QC Sampled) Case section under step 8. Select Other if the specific error element is not available. For cases with a [Review Finding] of Correct, the fields will be shaded dark gray; you should not indicate any case errors.

Timeliness

The State agency must report ESAP timeliness data from the Federal fiscal year quarter that includes the sixth month of the annual reporting period (see Table 5. Timeliness tab Federal fiscal year quarter guide).

- **Reporting Period:** The ESAP Reporting Template will auto populate the Federal fiscal year quarter based on the month and year entered in the [Reporting Period Start Month] on the START HERE tab. The quarter should be the quarter that includes the sixth month of the annual reporting period.
- **Initial ESAP Applications:** For the data reporting period, enter the following information. These numbers should include all expedited initial ESAP applications.
 - **Approvals** (column B): Enter the total number of initial ESAP applications approved.
 - **Approved Overdue Applications:** Of the initial ESAP applications approved, enter the total number approved overdue by 1 or more days.
- **ESAP Recertifications:** For the data reporting period, enter the following information. These numbers should include all expedited ESAP recertification applications.
 - **Approvals** (column B): Enter the total number of ESAP recertifications approved.
 - **Approved Overdue Applications:** Of the ESAP recertifications approved, enter the total number approved overdue by 1 or more days.
- **Expedited Service - Initial ESAP Applications:** For the data reporting period, enter the following information:
 - **Approvals:** Enter the total number of expedited service initial ESAP applications approved.
 - **Approved Overdue Applications:** Of the expedited service initial ESAP applications approved, enter the total number approved overdue by 1 or more days.

- **Expedited Service - ESAP Recertifications:** For the data reporting period, enter the following information:
 - **Approvals:** Enter the total number of expedited service ESAP recertifications approved.
 - **Approved Overdue Applications:** Of the expedited service ESAP recertifications approved, enter the total number approved overdue by 1 or more days.

Please note: When submitting reports to FNA, do not include clients' Personally Identifiable Information (PII). FNA reserves the right to add additional data fields in consultation with the State for reporting purposes.

CALFRESH NOTICE OF CHANGE FOR HOUSEHOLDS WITH ONLY ELDERLY AND/OR DISABLED MEMBERS

COUNTY OF _____

Notice Date : _____
 Case Name : _____
 Case Number : _____
 Worker Name : _____
 Worker Number : _____
 Telephone Number : _____
 Address : _____

(Addressee)

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If you have any questions or want more information about this action, please contact your worker.

State Hearing: If you think this action is wrong, you can ask for a hearing unless you already had a hearing on the amount you owe. Page two will tell you how. Your benefits may not be changed if you ask for a hearing before this action takes place.

OVERVIEW OF CHANGE

- Due to Federal changes, only households with people over the age of 65 or people with disabilities can participate under CalFresh's simplified application rules.
- Your household contains an individual aged 60-64 who does not have a disability.
- As a result of this change, you now need to complete a recertification interview at the end of your 36-month certification period.
- Additionally, you will need to complete a reporting form every 6 or 12 months. The county will tell you when you need to report.
- No action is required at this time.
- At the end of your certification period, you will get two notices. You will get a notice of expiration of certification. You will also get a notice with an interview appointment date and time. Once you get these notices, you will be required to take action.

Rules: These rules apply to the above action(s): 7 CFR 273.2(e), 7 CFR 273.2(f), 7 CFR 273.10(f)(1); 7 CFR 273.10(f)(4); 7 CFR 273.14(b)(3). You may review them online at cdss.ca.gov or at your local county office.

YOUR HEARING RIGHTS

YOUR HEARING RIGHTS (See also PUB 412 at www.cdss.ca.gov/inforesources/state-hearings)

You can ask for a hearing if you disagree with a county/agency action or failure to act. You have **90 days** to do so, starting the day after the date of the notice. After 90 days, you must prove you had a good reason for asking late. You can also ask for a hearing to review your benefits for the past 90 days. If you ask for a hearing before the date of the change, your benefits will continue unchanged. CalFresh will end if you don't recertify when due.

- **Online** at acms.dss.ca.gov Click "Create an account" to have an ACMS account and get documents online; or click "Submit Appeal without Account" to file without an account **OR**
- **Call** toll free (800) 743-8525 (or TDD (800) 952-8349) **OR**
- **Fax** fill out this page/fax to (833) 281-0905 **OR**
- Fill out this page, and deliver it by one of the following:
 - o **In-person:** _____
 - o **Mail to:** CDSS State Hearings Division,
PO Box 944243, MS 21-37
Sacramento CA 94244-2430
 - o **Email to:** SHDCSU@DSS.ca.gov

HEARING REQUEST

1. My hearing issue involves _____ (benefit program) and _____ County/Agency.
2. I want a hearing because: _____
3. Print name of person who needs a hearing: _____ Birthdate: _____
4. Mailing Address: _____ Phone number: _____
☐ I want to get hearing notices from the State Hearing Division by email. **Email Address:** _____
5. **Name/Signature:** _____ **Date Signed:** _____
6. Interpreter: ☐ I want a **free** interpreter for the _____ language or dialect.
7. Disability Accommodation for hearing? ☐ No ☐ Yes (explain): _____
8. Your Hearing will be scheduled by phone. If you want your hearing conducted by a different method, tell us how:
☐ By Telephone ☐ By Video (*you see judge on your phone/computer*) ☐ In person at the county hearing site
☐ I have no phone or Internet access. I want to go and use the phone or video at hearing site for my hearing.
9. I need a faster scheduled hearing due to ☐ Denial of CalWORKs or CalFresh emergency benefits
☐ Medical Emergency ☐ Eviction/homelessness ☐ Other (explain): _____
10. If you timely appeal before the action listed in the notice takes place, your aid may stay the same. For CalWORKs (including Child Care) and CalFresh, if the county action was correct, you have to pay back any extra aid.
☐ Check to have your aid lowered or stopped pending the hearing for: ☐ CalWORKs ☐ Childcare ☐ CalFresh
11. You can have a friend, relative, legal counsel or other person help with your hearing. **If they have agreed:**
 Name: _____ Email: _____
 Address: _____ Phone: _____
12. **To Get Help:** These groups below may be able to give you legal advice or represent you at the hearing:

CALFRESH ELDERLY SIMPLIFIED APPLICATION**This CalFresh application is used only if everyone applying is:**

- At least 65 or older and/or disabled.
- Not getting any income from work.
- Purchasing and preparing food together.

The application process begins when you give the county your name, address, and signature. Your application date is the day the county office gets your signed application. This will start the processing time to give you an answer on whether you can get benefits.

Questions? See pages 6 & 7 for more information.

Tell us about your household

Applicant name (first, middle initial, last)

Physical address (street address, city, state, zip code) ☐ Home Address ☐ Institution ☐ Homeless

Mailing address (street address or PO box, city, state, zip code, if different from physical address)

Email address

Phone number where we can call you

Best time to call you

You may choose someone at least 18 years old to help you with CalFresh benefits.

- This person is called an “Authorized Representative” (AR). The AR can help speak for you at the interview, help complete your forms, buy food for you, and/or report changes for you. ARs are not to be household members that purchase and prepare meals with the CalFresh applicant.
- You will have to repay any benefits you get by mistake because of information this person gives the county and any benefits you did not want them to spend will not be replaced.
- You will need to give the county proof of identity to act as an AR.

I want the person below to help me with my CalFresh case.

☐ Yes ☐ No

I want the person below to be allowed to get and spend CalFresh benefits for my household.

☐ Yes ☐ No

Authorized Representative (first, middle initial, last)

Phone Number

Address (street address, city, state, zip code)

By signing below, I certify and agree that:

- I have read and understand the information on pages 6 & 7.
- I have read, understand, and agree to the Rights & Responsibilities/Program Rules on pages 8-10.
- I give my word, under penalty of perjury, that what I write in this application is correct and complete to the best of my knowledge and belief.

Signature of Applicant/Authorized Representative

Date

You do not have to answer the following two questions, but they may help you get other services.

1. Does anyone in your household have a disability? ☐ Yes ☐ No

Tip: This includes anyone recovering from a disability or major illness.

If **yes**, name of person(s): _____

2. Does anyone in your household need help due to a disability? ☐ Yes ☐ No

Tip: This includes anyone needing help completing the eligibility process or anything benefits related.

If **yes**, name of person(s): _____

Expedited Service

Let's see if your household can get benefits within 3 days. Answer the questions below for everyone applying for CalFresh.

3. Is anyone a migrant/seasonal farmworker and has anyone's income stopped? ☐ Yes ☐ No

4. Is your household's gross income (before deductions) less than \$150 this month? ☐ Yes ☐ No

5. Does your household have \$100 or less in cash, including amounts in bank accounts? ☐ Yes ☐ No

6. Is your household's monthly rent/mortgage and utility costs more than your household's gross income and available cash this month? ☐ Yes ☐ No

For the questions below, use additional space on page 5 or extra paper if needed.

Household Members

Tell us about everyone in the household.

Applicant (from page 1)		Date of birth (mm/dd/yyyy)	
Social Security Number	U.S. citizen? ☐ Yes ☐ No	Relationship to applicant SELF	Working? ☐ Yes ☐ No
Ethnicity (Optional): ☐ Hispanic/Latino ☐ Non-Hispanic/Latino	Race (Optional): ☐ American Indian/Alaska Native ☐ Asian ☐ Black/African American ☐ Native Hawaiian/Other Pacific Islander ☐ White ☐ Other	Gender Identity (Optional): ☐ Female ☐ Male ☐ Transgender Female ☐ Transgender Male ☐ Non-binary (neither male nor female) ☐ Another gender identity ☐ Decline to state	

Household Members (Continued)

Name (first, middle, last)		Date of birth (mm/dd/yyyy)	
Social Security Number	U.S. citizen? ☐ Yes ☐ No	Relationship to applicant	Working? ☐ Yes ☐ No
Ethnicity (Optional): ☐ Hispanic/Latino ☐ Non-Hispanic/Latino	Race (Optional): ☐ American Indian/Alaska Native ☐ Asian ☐ Black/African American ☐ Native Hawaiian/Other Pacific Islander ☐ White ☐ Other	Gender Identity (Optional): ☐ Female ☐ Male ☐ Transgender Female ☐ Transgender Male ☐ Non-binary (neither male nor female) ☐ Another gender identity ☐ Decline to state	

If more than 2 household members, please put their information on page 5 of this application

Income

7. Does anyone in the household get income? ☐ Yes ☐ No

If **yes**, tell us about all the income that everyone in your household gets. Income may include Social Security; Child Support; Alimony; Unemployment or Worker's Compensation; Disability benefits; money from friends or relatives; Pensions; Retirement benefits, SSI/SSP; Veteran's benefits.

Person with income	Type of income	How much	How often	Date received
		\$		
		\$		
		\$		
		\$		

Resources

8. Does anyone in the household have any resources (cash, money in the bank, Certificate of Deposit, stocks, bonds, etc.)? ☐ Yes ☐ No

Expenses

9. Does anyone in your household pay court-ordered child support? ☐ Yes ☐ No

Person who pays	How much	How often
	\$	

10. Who paid for dependent/child care? _____

Amount paid for dependent/child care in \$ _____

Names of dependents/children: _____

11. Does anyone in your household pay more than \$35 per month in out-of-pocket medical expenses? ☐ Yes ☐ No

If **yes**, tell us about any out-of-pocket medical expenses paid by anyone in your household.

Expenses may include medications, doctor visits, hospital bills, transportation costs (including mileage), medical supplies, home health aides, service animal expenses, mental health expenses, and health insurance premiums. (Ask your county for a list of allowable expenses.)

Person who pays	Type of medical expense	Amount paid monthly
		\$
		\$
		\$
		\$

Tell us about your household's shelter and utility expenses.

12. Does your household pay rent or mortgage? ☐ Yes ☐ No

If **yes**, what is the payment? \$ _____ ☐ weekly ☐ monthly ☐ other

If you are homeless, do you have shelter costs? ☐ Yes ☐ No

If **yes**, what are your costs? \$ _____ ☐ weekly ☐ monthly ☐ other

13. Does your household pay for any of the following costs? Check all that apply and specify if it is paid weekly, monthly, or other (If the cost is included in your rent or mortgage payment, do not list it here):

- | | | | |
|---|---------------------------------|----------------------------------|--------------------------------|
| ☐ Phone (including cell) | ☐ weekly | ☐ monthly | ☐ other |
| ☐ Electric and/or Gas | ☐ weekly | ☐ monthly | ☐ other |
| ☐ Water | ☐ weekly | ☐ monthly | ☐ other |
| ☐ Trash | ☐ weekly | ☐ monthly | ☐ other |
| ☐ Property tax: \$ _____ | ☐ weekly | ☐ monthly | ☐ other |
| ☐ Home or Renter's insurance: \$ _____ | ☐ weekly | ☐ monthly | ☐ other |
| ☐ Homeowner's Association (HOA) fees: \$ _____ | ☐ weekly | ☐ monthly | ☐ other |
| ☐ Mobile home lot rent: \$ _____ | ☐ weekly | ☐ monthly | ☐ other |
| ☐ Other (please specify): \$ _____ | ☐ weekly | ☐ monthly | ☐ other |

Answer the questions below about everyone in the household.

14. Did anyone in your household win a substantial amount in a single bet or hand from lottery/gambling that is equal to, or greater than the maximum resource limit for elderly/disabled household members? ☐ Yes ☐ No
15. Has anyone been convicted of welfare fraud or misuse of benefits in any state? ☐ Yes ☐ No
16. Is anyone a fleeing felon or found to be in violation of their parole or probation? ☐ Yes ☐ No
17. Have you or any member of your household been convicted as an adult of aggravated sexual abuse, murder, sexual exploitation, and/or other abuse of children, a Federal or State offense involving sexual assault, or an offense under State law determined by the Attorney General to be similar to any of the offenses listed, and the conviction happened after February 7, 2014, and not in compliance with the terms of their sentence? ☐ Yes ☐ No

Additional Writing Space (if needed):

Important Information You Need to Know

Application Process

- Complete pages 1 to 5.
- Make sure you read pages 6 thru 10 and then **sign on page 1**.
- Make copies of any documents needed as proof (e.g., income, proof of identity for yourself, proof of out-of-pocket medical expenses, or power of attorney). You can submit any documents with your application.
- Submit your application:
 - In-person, By Phone, By Mail, By Fax: To the county social services office where you live.
 - Online: You can also apply for CalFresh or other programs online by going to <http://www.benefitscal.com/>.
- Complete an interview with the county to discuss your application. You have the option to complete your interview over the phone, in person at the county office, or another place arranged with the county.

Have questions? Need help applying? Call the CalFresh Benefits Helpline at 1-877-847-3663 or contact your county social services office. If you have limited English, ask for a free interpreter. If you need help because of a disability, dial 7-1-1 or talk to your county social services office.

Noncitizens

- You can apply for and get CalFresh benefits for eligible people, even if your family includes others who are not eligible.
- Applying for or getting CalFresh benefits does not affect the immigration status for you or your family. CalFresh is **NOT** a “Public Charge.” Immigration information is private and confidential.
- The immigration status of noncitizens who apply for benefits will be checked with the U.S. Citizenship and Immigration Services (USCIS). Federal law says the USCIS cannot use the information for anything else other than for cases of fraud.

Opting Out

You do not have to give immigration information, Social Security numbers, or documents for any noncitizen family member(s) who are not applying for CalFresh benefits. The county will need to know their income and resource information to correctly determine your household's benefits. The county will not contact USCIS about the people who don't apply for CalFresh benefits.

USDA Non-Discrimination Statement (Do Not Send Applications Here)

In accordance with Federal civil rights law and U.S. Department of Agriculture (USDA) civil rights regulations and policies, the USDA, its Agencies, offices, and employees, and institutions participating in or administering USDA programs are prohibited from discriminating based on race, color, national origin, religion, sex, disability, age, marital status, family/parental status, income derived from a public assistance program, political beliefs, or reprisal or retaliation for prior civil rights activity, in any program or activity conducted or funded by USDA (not all bases apply to all programs). Remedies and complaint filing deadlines vary by program or incident.

Persons with disabilities who require alternative means of communication for program information (e.g., Braille, large print, audiotope, American Sign Language, etc.) should contact the State or

local Agency that administers the program or contact USDA through the Telecommunications Relay Service at 711 (voice and TTY). Additionally, program information may be made available in languages other than English.

To file a program discrimination complaint, complete the USDA Program Discrimination Complaint Form, AD-3027, found online at: <https://www.usda.gov/about-usda/general-information/staff-offices/office-assistant-secretary-civil-rights/how-file-usda-discrimination-complaint/how-file-program-discrimination-complaint> and at any USDA office or write a letter addressed to USDA and provide in the letter all of the information requested in the form. To request a copy of the complaint form, call (866) 632-9992. Submit your completed form or letter to USDA by: (1) mail: USDA Food and Nutrition Service, 1320 Braddock Place, Room 334, Alexandria, VA 22314; or (2) email: FNACIVILRIGHTSCOMPLAINTS@usda.gov.

USDA is an equal opportunity provider, employer, and lender.

Do Not Send Applications Here

Privacy Act Statement

- (i) The collection of this information, including the Social Security number (SSN) of each household member, is authorized under the Food Stamp Act of 1977, as amended, 7 U.S.C. 2011-2036. The information will be used to determine whether your household is eligible or continues to be eligible to participate in SNAP. We will verify this information through computer matching programs. This information will also be used to monitor compliance with program regulations and for program management.
- (ii) This information may be disclosed to other federal and state agencies for official examination, and to law enforcement officials for the purpose of apprehending persons fleeing to avoid the law.
- (iii) If a SNAP claim arises against your household, the information on this application, including all SSNs, may be referred to federal and state agencies, as well as private claims collection agencies, for claims collection action.
- (iv) Providing the requested information, including the SSN of each household member, is voluntary. However, failure to provide an SSN will result in the denial of SNAP benefits to each individual failing to provide an SSN. Any SSNs provided will be used and disclosed in the same manner as SSNs of eligible household members.

Your county office may verify immigration status of household members applying for benefits. This is done by contacting the USCIS. Information the county gets from these agencies may affect your eligibility and level of benefits.

Your county office will check your answers using state and federal electronic databases. This includes the Internal Revenue Service (IRS), Social Security Administration, the Department of Homeland Security, and/or a **consumer reporting agency**. The county may ask you to send proof if the information does not match.

Rights & Responsibilities/Program Rules

Call your county office to help understand your rights and responsibilities.

You may ask for a fair hearing if you disagree with a decision about benefits. To do so:

- Call (800) 952-5253. For hearing rights or speech impaired who use TDD (800) 952-8349 or
- Go online at acms.dss.ca.gov or
- Fax the Hearing Request form to (833) 281-0905
- You may get free legal help at your local legal aid or welfare rights office. The back of your county notice lists your free local help or call the numbers listed above.

You have the right to get a copy of this application. Ask your county office for a copy.

You have the right to a timely decision. Unless there is a delay, an emergency, or an administrative problem beyond the county's control, expect a decision within 30 days of applying. For emergency benefits, you will get the county's decision within 3 days.

You may get free aids & services to help you participate if you have a disability. These are called "*reasonable accommodations*." Call your county office to ask for these, if needed.

You have the right to privacy and confidentiality. We will only share information about your case when it's connected to program administration, allowed by law/court order, or you give your permission. This is also required of all the agencies that work with us.

Give proof of your household's expenses that may help you get more benefits. Not giving proof to the county is the same as saying that you do not have that expense. You then will not be able to get more benefits.

You need to report changes that could affect your benefits. The county office will give you information about what, when, and how to report. If you don't report when required your CalFresh benefits may be lowered or stopped.

You must provide a Social Security number (SSN) or proof that you have applied for an SSN for each person on this application. Federal and State law requires it as a condition of eligibility. There are some exceptions. If you need more information about those exceptions, please ask your county office.

You must tell the county right away if you get benefits from another state. You must also report if anyone has been convicted of lying about where they live to get benefits from more than one state in the past 10 years.

You must cooperate with the county and the state if your application is selected for a quality control review. This includes giving proof of information and letting us get that proof if you can't.

You need to give accurate information. If the information is not accurate, benefits may be reduced and, you may be asked to repay benefits. If you are found to have intentionally given false or misleading information, you could be barred from getting benefits. You may also be charged with a crime.

You must not:

- sell your CalFresh benefits.
- use CalFresh to buy ineligible items (e.g., non-food, alcohol, or tobacco products).
- trade CalFresh for illegal drugs, firearms, ammunition, or explosives.

- let anyone use your EBT card unless they are buying food for your household.
- use or have someone else's EBT card unless you are buying food for their household.
- get food benefits in more than one state for the same month.

Anyone found guilty of any of the above misuse shall face penalties. This includes a ban from the CalFresh program for a specific period, a fine, and imprisonment. The specific period of the ban can be one year, two years, or permanently.

Program Rules and Penalties

You are committing a crime if you give information that is false or untrue on purpose to try to get CalFresh benefits that you are not eligible to get. It is also a crime to on purpose help someone else get benefits that they are not eligible to get. You must pay back any benefits you get that you were not eligible to get.

Program Violations

For CalFresh: I understand I may have committed an intentional program violation if I do any of the following:

- Hide information or make false statements
- Use Electronic Benefit Transfer (EBT) cards that belong to someone else or let someone else use my card
- Use CalFresh benefits to buy alcohol or tobacco
- Trade, buy, sell, steal, or give away CalFresh benefits or EBT cards, or attempt to trade, buy, sell, steal, or give away CalFresh benefits or EBT cards
- Try to get dual benefits, for example, apply in two or more different counties or states at the same time
- Submit false documents for children or adult household members who are not eligible or who do not exist
- Violate conditions of my probation or parole
- Flee after a felony conviction
- Purchase (buy) a product with CalFresh benefits that has a return deposit, intentionally (on purpose) throw away the contents and return the container for the deposit amount or attempt to return the container for the deposit amount
- Buy a product with CalFresh benefits and intentionally resell it for cash or anything other than eligible food

Penalties

I may:

- Lose CalFresh benefits for 12 months for the first offense and be required to repay all CalFresh benefits overpaid to me
- Lose CalFresh benefits for 24 months for the second offense and be required to repay all CalFresh benefits overpaid to me
- Lose CalFresh benefits permanently for the third offense and be required to repay all CalFresh benefits overpaid to me
- Be fined up to \$250,000 imprisoned up to 20 years or both

Program Violations For CalFresh: I understand I may have committed an intentional program violation if I do any of the following: • Trade CalFresh benefits or <u>attempt</u> to trade CalFresh benefits for: cash, firearms, non-eligible goods, or controlled substances such as drugs	Penalties I may: • Lose CalFresh benefits for 10 years for each offense • Lose CalFresh benefits permanently
• Give false information about who I am and where I live, so I can get extra CalFresh benefits	• Lose CalFresh benefits for 24 months for the first offense
• Have been convicted of trading, selling, or <u>attempting</u> to trade CalFresh benefits worth more than \$500, or trading or <u>attempting</u> to trade CalFresh benefits for firearms, ammunition, or explosives	• Lose CalFresh benefits permanently for the second offense